

INDIVIDUAL AND STATE

THE CENTRAL QUESTION OF → GROUNDING A RIGHT: NATURE → THE STRUCTURE OF A → DUTIES, THE INVERSION OF → ACCOUNTABILITY: THREE CHANNELS AND → LIBERAL, IDEALIST AND CONTRACTARIAN

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g5 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 THE CENTRAL QUESTION OF THE INDIVIDUAL-STATE RELATION AND ITS VOCABULARY

THE CENTRAL QUESTION OF THE INDIVIDUAL-STATE RELATION AND ITS ON WHAT TERMS MAY ORGANISED PUBLIC AUTHORITY BIND A THREE LINKED IDEAS RIGHTS (JUSTIFIED CLAIMS) DUTIES (WHAT IS OWED) ACCOUNTABILITY (POWER THAT MUST ANSWER)

INDIVIDUAL SOCIETY GOVERNMENT STATE AGENCY, DIGNITY, WHOLE WEB OF AUTHORITY NOW; BINDING POWER OVER VOLUNTARY BODIES TRANSIENT A

SOURCE / DOCTRINE

- CENTRAL QUESTION → on what terms may organised public authority BIND a person, and what may that person CLAIM, OWE and DEMAND in return?
- THREE LINKED IDEAS: RIGHTS (justified claims)
- DUTIES (what is owed)
- ACCOUNTABILITY (power that must answer)
- INDIVIDUAL SOCIETY GOVERNMENT STATE agency, dignity, whole web of the organ that organised public interests, moral cooperation

ARGUMENT / MECHANISM

- binding power over voluntary bodies transient a territory
- WHY A STATE → order and security
- rights protection
- public goods
- justice and welfare

IMPLICATION / VERDICT

- BUT the protector can DOMINATE → power must be JUSTIFIED, LIMITED, ANSWERABLE
- LEGITIMACY (a right to rule subjects have reason to accept) vs COERCION (a gang)
- SPECTRUM → minimal
- CONTROL → define the terms FIRST, locate on the spectrum SECOND, adjudicate LAST.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LEGITIMACY (a right to rule subjects have reason to accept) vs COERCION (a gang).

01

STAGE 01 GROUNDING A RIGHT: NATURE, LAW AND THE CRITICAL MORAL REGISTER

GROUNDING A RIGHT NATURE, LAW AND THE CRITICAL MORAL REGISTER A RIGHT IS A JUSTIFIED CLAIM, LIBERTY, POWER OR WHY IS IT OWED? NATURAL (LOCKE) LEGAL (BENTHAM) MORAL RIGHTS HELD IN THE LAW NAMES A CLAIMANT, REASONING BEFORE ANY LIFE, LIBERTY

FIDUCIARY TRUST; NONSENSE UPON STILTS; VALID BUT UNJUST LAW RIGHT TO RESIST CHILDREN OF LAW ANTI-COLONIAL CLAIMS)

QUESTION → a right is a JUSTIFIED CLAIM, LIBERTY, POWER or IMMUNITY: why is it

NATURAL (Locke) LEGAL (Bentham) MORAL rights held in the a right exists where justified by

ethical state of nature: law names a CLAIMANT, reasoning BEFORE any life, liberty, a DUTY-BEARER

and a enactment property REMEDY government is a natural rights are grounds criticism of a

FIDUCIARY TRUST; NONSENSE UPON STILTS; VALID but unjust law breach forfeits it real rights are

SOURCE / DOCTRINE

- QUESTION → a right is a JUSTIFIED CLAIM, LIBERTY, POWER or IMMUNITY: why is it owed?
- NATURAL (Locke) LEGAL (Bentham) MORAL rights held in the a right exists where justified by
- ethical state of nature: law names a CLAIMANT, reasoning BEFORE any life, liberty, a DUTY-BEARER
- and a enactment property REMEDY government is a natural rights are grounds criticism of a

ARGUMENT / MECHANISM

- FIDUCIARY TRUST; NONSENSE UPON STILTS; VALID but unjust law breach forfeits it real rights are the (anti-slavery,
- right to resist CHILDREN OF LAW anti-colonial claims)
- PRESUPPOSITIONS → intrinsic moral status
- institutional enforceability

IMPLICATION / VERDICT

- standards of justice not exhausted by positive law
- TRAP → Bentham rejects NATURAL rights, not legal rights; legal validity is never the same thing as moral legitimacy.
- VERDICT → a mature order needs all three registers: nature grounds, law enforces, morality judges.

MECHANISM / VERDICT — VERDICT → a mature order needs all three registers: nature grounds, law enforces, morality judges.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP → Bentham rejects NATURAL rights, not legal rights; legal validity is never the same thing as moral legitimacy.

02

STAGE 02 THE STRUCTURE OF A RIGHT AND THE CORRELATIVITY VERDICT

THE STRUCTURE OF A RIGHT AND THE CORRELATIVITY VERDICT WHAT IT ACTUALLY ENTAILS A STRICT DUTY-PARTNER EXISTS NO POSITIVE DUTY TO ASSIST ME I CAN ALTER LEGAL RELATIONS YOU CANNOT ALTER MY STATUS WHAT DOES A RIGHT PROTECT? WILL THEORY

INCIDENT	CORRELATIVE	OPPOSITE	WHAT IT ACTUALLY ENTAILS
CLAIM-RIGHT	duty	no-right	a STRICT duty-partner exists
LIBERTY	no-right	duty	NO positive duty to assist me
POWER	liability	disability	I can alter legal relations
IMMUNITY	disability	liability	you cannot alter my status

SYSTEM / DOCTRINE

- WHAT IT ACTUALLY ENTAILS
- a STRICT duty-partner exists
- NO positive duty to assist me
- I can alter legal relations

DECISIVE DISTINCTION

- WHAT DOES A RIGHT PROTECT?
- WILL THEORY → control over another's duty; fits autonomy; fails for children
- INTEREST THEORY → protection of a vital interest; fits welfare; underplays agency
- most working systems run a MIXED account

EVALUATION / TRAP

- UNIVERSALIST → equal worth; protection from cruelty is a common aspiration
- RELATIVIST → personhood, authority and obligation are read through culture
- BALANCE → universality of ASPIRATION need not mean uniformity of ARTICULATION
- CORRELATIVITY VERDICT → conceptual for claim-rights, institutional for the rest

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT → bounded rights do NOT entail anarchy; only a naive absolutism would.

07

STAGE 07 POLITICAL OBLIGATION: SIX GROUNDS DRIVEN THROUGH FOUR TESTS

POLITICAL OBLIGATION SIX GROUNDS DRIVEN THROUGH FOUR TESTS IS THERE A MORAL DUTY TO OBEY THE LAW NOT FEAR (A GUNMAN OBLIGES WITHOUT OBLIGATING) NOT AGREEMENT WITH CONTENT NOT LEGAL VALIDITY (A SEPARATE) FOUR TESTS
CONSENT FAIR PLAY NATURAL DUTY ASSOCIATIVE GRATITUDE ANARCHISM LOCKE, HOBBS, HART, RAWLS RAWLS DWORKIN CLASSICAL WOLFF

not fear (a gunman obliges without obligating)	not agreement with content not legal validity (a separate, jurisprudential question)		
FOUR TESTS → GENERALITY	PARTICULARITY	CONTENT-INDEPENDENCE	DEFEASIBILITY

SYSTEM / DOCTRINE

- PROBLEM → is there a MORAL duty to obey the law BECAUSE it is law?
- not fear (a gunman obliges without obligating)
- not agreement with content not legal validity (a separate, jurisprudential question)
- FOUR TESTS → GENERALITY

DECISIVE DISTINCTION

- CONSENT FAIR PLAY NATURAL DUTY ASSOCIATIVE GRATITUDE ANARCHISM
- Locke, Hobbes, Hart, Rawls Rawls Dworkin classical Wolff,
- Rousseau Simmons tacit consent unavoidable fails membership benefactor no general from residence benefits
- PARTICULARITY may be may also duty is is not truly cannot bind →

EVALUATION / TRAP

- binds me unjust and oppress established voluntary (Nozick) to ANY just unchosen state
- RAZ, SERVICE CONCEPTION → authority is legitimate when its directives help subjects conform to reasons that already apply; directives are PRE-EMPTIVE
- DWORKIN, TAKING RIGHTS SERIOUSLY (1977) → rules apply all-or-nothing, PRINCIPLES have WEIGHT; hard cases are decided by principle; RIGHTS ARE TRUMPS
- TRAP → never give the service conception to Simmons or anarchism to Raz.

MECHANISM / VERDICT — PROBLEM → is there a MORAL duty to obey the law BECAUSE it is law?

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP → never give the service conception to Simmons or anarchism to Raz.

08

STAGE 08 THE LADDER OF REFUSAL AND THE INDIAN CONSTITUTIONAL LIMIT

THE LADDER OF REFUSAL AND THE INDIAN CONSTITUTIONAL LIMIT IF THE DUTY TO OBEY IS DEFEASIBLE, WHEN IS [1] LEGAL DISSENT ----- WITHIN THE LAW SPEECH, VOTE, PETITION, LITIGATION [2] CONSCIENTIOUS OBJECTION -- PERSONAL EXEMPTION; MAY BE PRIVATE
[3] CIVIL DISOBEDIENCE ----- ESSENTIALLY PUBLIC APPEAL TO SHARED NON-VIOLENT; DELIBERATE BREACH; ACCEPTS THE PENALTY AFFIRMS THE RULE OF LAW WHILE CONTESTING ONE LAW

IF the duty to obey is DEFEASIBLE, when is refusal justified? -- refusal is GRADED

[1] LEGAL DISSENT ----- within the law: speech, vote, petition, litigation

[2] CONSCIENTIOUS OBJECTION -- personal EXEMPTION; may be private; accepts the penalty; accepts the system's

[3] CIVIL DISOBEDIENCE ----- ESSENTIALLY PUBLIC appeal to shared principles

SOURCE / DOCTRINE

- IF the duty to obey is DEFEASIBLE, when is refusal justified? -- refusal is GRADED
- [1] LEGAL DISSENT ----- within the law: speech, vote, petition, litigation
- [2] CONSCIENTIOUS OBJECTION -- personal EXEMPTION; may be private; accepts the penalty; accepts the system's legitimacy
- [3] CIVIL DISOBEDIENCE ----- ESSENTIALLY PUBLIC appeal to shared principles
- NON-VIOLENT; deliberate breach; ACCEPTS THE PENALTY

ARGUMENT / MECHANISM

- [4] RESISTANCE → REVOLUTION - withdraws allegiance from acts, or from the whole order; gravest bar of justification
- CONDITIONS FOR RUNG 3 → seriously unjust law
- channels exhausted or blocked open and non-violent
- penalty accepted
- nearly just society (Rawls)

IMPLICATION / VERDICT

- Salt Satyagraha, 1930 (announced, non-violent, arrest accepted)
- Ambedkar, Constituent Assembly, 25 November 1949: once constitutional methods exist, unconstitutional methods are the GRAMMAR OF ANARCHY
- INDIA → Articles 19(1)(a) and 19(1)(b) protect PROTEST subject to reasonable restrictions under 19(2) and 19(3); there is NO right to break the law.
- TENSION → Gandhi assumes no constitutional voice, Ambedkar assumes there is one
- the live question is whether channels are genuinely open to THAT group.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: affirms the rule of law while contesting one law.

09

STAGE 09 THE ANSWER ENGINE: STAGED DEBATES, TRAP BANK AND THE GRADED VERDICT

THE ANSWER ENGINE STAGED DEBATES, TRAP BANK AND THE GRADED VERDICT SIX-MOVE SPINE FOR ANY STEM ON THIS CLAUSE [1] DEFINE THE KEY TERM [2] LOCATE ON THE SPECTRUM TOTALITARIAN STATELESS [3] STATE THE RIVALS [4] OBJECTION

DOCTRINE / CLAIM

- SIX-MOVE SPINE FOR ANY STEM ON THIS CLAUSE
- [1] DEFINE the key term → right
- [2] LOCATE on the spectrum → minimal
- totalitarian stateless
- [3] STATE the rivals → liberal

OBJECTION / PRESSURE

- 1949 judicial review
- [6] GRADED VERDICT → neither an atom outside society nor a cell inside the state
- DEBATES YOU MUST BE ABLE TO STAGE
- Hobbes vs Locke on resistance
- Locke vs Rousseau on the will liberal vs communitarian on the self

REPLY / RESIDUAL

- TRAP BANK → state is not government
- Bentham is not anti-all-rights
- Article 51A is not enforceable
- India has CONSTITUTIONAL supremacy, not parliamentary sovereignty
- never fabricate a case, article, quotation or date

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: REVISION RULE → a twenty-marker is won in paragraphs four and five, where the criticism of your OWN thesis is voiced before the verdict is delivered.

DOCTRINE / CLAIM

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10

STAGE 10

ORGANIC AND MECHANISTIC VIEWS WITH LIBERTY LIMITS

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MECHANISTIC VIEW

PRIOR PERSONS CREATE THE STATE AS AN INSTRUMENT

ORGANIC VIEW

POLITICAL LIFE PARTLY CONSTITUTES THE DEVELOPED PERSON

LIBERAL RISK

ATOMISM, HOLLOW FORMAL FREEDOM AND UNCHECKED PRIVATE POWER

ORGANIC RISK

SYSTEM / DOCTRINE	DECISIVE DISTINCTION	EVALUATION / TRAP
MECHANISTIC VIEW → prior persons create the state as an instrument	ORGANIC RISK → conscience and rights absorbed into the political whole	HARM PRINCIPLE → coercion presumptively prevents harm to others
ORGANIC VIEW → political life partly constitutes the developed person	NEGATIVE FREEDOM → protected non-interference	PATERNALISM → interference for the person's own good; hard form is suspect
LIBERAL RISK → atomism, hollow formal freedom and unchecked private power	POSITIVE FREEDOM → effective capacity through enabling conditions	SYNTHESIS → institutions serve persons whose agency is socially formed

SYSTEM / DOCTRINE

- MECHANISTIC VIEW → prior persons create the state as an instrument
- ORGANIC VIEW → political life partly constitutes the developed person
- LIBERAL RISK → atomism, hollow formal freedom and unchecked private power

DECISIVE DISTINCTION

- ORGANIC RISK → conscience and rights absorbed into the political whole
- NEGATIVE FREEDOM → protected non-interference
- POSITIVE FREEDOM → effective capacity through enabling conditions

EVALUATION / TRAP

- HARM PRINCIPLE → coercion presumptively prevents harm to others
- PATERNALISM → interference for the person's own good; hard form is suspect
- SYNTHESIS → institutions serve persons whose agency is socially formed

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: SYNTHESIS → institutions serve persons whose agency is socially formed.

11

STAGE 11

NEUTRALITY COMMON GOOD AND THE PLATO-ARISTOTLE COMPARISON

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FAIR TERMS AMONG RIVAL CONCEPTIONS OF THE GOOD

PUBLIC PROMOTION OF GENUINE GOODS OR CAPABILITIES

PRIVATE SPHERE

PROTECTS AUTONOMY BUT NEVER IMMUNISES HARM OR DOMINATION

COMMUNITARIAN CHECK

EMBEDDED SELF, COMMON GOODS, DUTIES AND BELONGING

MINORITY SAFEGUARD

NEUTRALITY → fair terms among rival conceptions of the good

PERFECTIONISM → public promotion of genuine goods or capabilities

PRIVATE SPHERE → protects autonomy but never immunises harm or domination

COMMUNITARIAN CHECK → embedded self, common goods, duties and belonging

MINORITY SAFEGUARD → dissenters retain equal rights and civic standing

SYSTEM / DOCTRINE

- NEUTRALITY → fair terms among rival conceptions of the good
- PERFECTIONISM → public promotion of genuine goods or capabilities
- PRIVATE SPHERE → protects autonomy but never immunises harm or domination

DECISIVE DISTINCTION

- COMMUNITARIAN CHECK → embedded self, common goods, duties and belonging
- MINORITY SAFEGUARD → dissenters retain equal rights and civic standing
- PLATO → philosopher-rule and guardian unity tilt toward statism

EVALUATION / TRAP

- ARISTOTLE → natural polis plus household, property and political plurality
- COMPARATIVE VERDICT → Aristotle is the better middle, not a modern liberal
- LIMIT → both are perfectionist; Aristotle retains major exclusions

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: COMPARATIVE VERDICT → Aristotle is the better middle, not a modern liberal.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

ADVANCED SESSION 1 — THE INDIVIDUAL-STATE FRAME

CONCEPTS AND WHY A STATE

ADVANCED SESSION 2 — RIGHTS I

WHAT A RIGHT IS AND ITS SOURCES

ADVANCED SESSION 3 — RIGHTS II

HOHFELD, WILL/INTEREST, HUMAN RIGHTS AND CORRELATIVITY

ADVANCED SESSION 4 — DUTIES

OPTIONAL SOURCE WITNESS

- ADVANCED SESSION 1 — The Individual-State Frame: Concepts and Why a State
- ADVANCED SESSION 2 — Rights I: What a Right Is and Its Sources
- ADVANCED SESSION 3 — Rights II: Hohfeld, Will/Interest, Human Rights and Correlativity
- ADVANCED SESSION 4 — Duties: Nature, Gandhi's Duty-Centrism and the Priority Debate

ADVANCED OBJECTION

- ADVANCED SESSION 5 — Accountability of Public Power
- ADVANCED SESSION 6 — Theories of the Relationship: Liberal, Idealist and Social Contract
- ADVANCED SESSION 7 — Radical and Situated Critiques: Anarchist, Marxist, Welfare, Communitarian, Feminist
- ADVANCED SESSION 8 — Political Obligation: Why Should the Individual Obey the State?

COMPARATIVE NUANCE

- ADVANCED SESSION 9 — Disobedience, Resistance and the Indian Constitutional Application
- ADVANCED SESSION 10 — Inter-Thinker Debates, Criticisms and Common Traps
- ADVANCED DOSSIER REFINEMENTS — USE SELECTIVELY
- Core prerequisite: Rights, duties and accountability

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.